

**IN THE HIGH COURT OF UNITED REPUBLIC OF TANZANIA
SUB-REGISTRY OF MOSHI
AT MOSHI**

CRIMINAL APPEAL NO.30 OF 2021

(Appeal from the decision of the District Court of Siha at Siha dated 14th December, 2019 in
Criminal Case No. 104 of 2019)

DEOGRATIUS PETER SHAYO.....APPELLANT

VERSUS.

THE REPUBLIC.....RESPONDENT

JUDGMENT

25th Nov. & 31st December, 2025.

A.P. KILIMI, J.

Deogratius Peter Shayo the appellant herein is aggrieved with the conviction and sentence of thirty (30) years' imprisonment meted to him by the District Court of Siha at Siha 'hereinafter (the trial court)'. At the trial court, the appellant stood charged with the offence of Rape contrary to sections 130(1)(2)(b) and 131(1) of the Penal Code Cap 16 of the Revised Laws, upon the charge being read over to him, he pleaded guilty to the charge. Likewise, when the facts constituting the offence was read over and explained to him, he also accepted them to be true and eventually he was convicted based on his own plea of guilty and sentenced as stated above.

Aggrieved with the trial court decision stated above, the appellant appealed in this Court and before my learned brother Mwenempazi, J. his appeal was unsuccessfully as it was dismissed. Still aggrieved, the appellant preferred his appeal to the Court of Appeal vide **Deogratius Peter Shayo vs Republic** (Criminal Appeal No. 509 of 2021) [2024] TZCA 1156 (28 November 2024), wherein the court at page 13 found that by skipping the appellant to address first his ground at the trial court infringed his right to

be heard, thus it proceeded to quash this court's appeal proceedings and judgment and ordered the file be remitted to this court so that the appellant can be heard on his grounds of appeal.

Now in this court, the appellant appearing before me in compliance with the order above, he appeals against both conviction and sentence of the trial court and the grounds presented by the appellant in this court are as follows;

- i. That the learned trial magistrate erred both in law and fact in holding that a plea of guilty entered by the appellant was unequivocal plea of guilty.
- ii. That the learned trial magistrate erred both in law and fact in failing to note that the caution statement and the PF3 tendered and received to form part of the proceedings prejudiced the appellant since the contents was not read over to him before the court in order to become aware of its contents.
- iii. That the learned trial magistrate erred both in law and fact in failing to note that once an accused is unrepresented by an advocate the trial court becomes a trustee in law and is enjoined to ensure that an accused person is convicted on his own plea where it is certain that he understands the charge laid at his door and he has no defense on it.
- iv. That the learned trial magistrate erred both in law and fact in failing to note that the accused was a layman and he did not understand not the court did not warn him against the consequences of pleading guilty, considering that the police lied to him that if he plead guilty he would get a conditional discharge sentence

When the appeal was scheduled before me for hearing, the appellant appeared unrepresented and prayed this court to consider his grounds of appeal and acquit him, while the respondent through the service of Ms. Grace Kabu senior State Attorney argued against the appellants' grounds by way of written submissions. After the reply by the respondent parties were called as scheduled to see if the appellant had a rejoinder, the appellant said he had no rejoinder, and prayed further this court to consider his grounds of appeal to acquit him.

Arguing against the first ground Ms. Grace submitted that the settled principle for unequivocal plea, it must satisfy the requirement set out in section 245(1) and (2) of the Criminal Procedure Act [Cap 20 R.E 2023] as it was also held in **Paskali Kamara vs. Republic**, Criminal Appeal No. 457 of 2018[2022] TZCA 631. She argued that the charge was read over and explained to the appellant where he pleaded guilty by saying 'it is true'. The learned state attorney added that even after the facts were read over to the appellant, he also accepted to have raped the victim, thus his plea was unequivocal and unambiguous.

Arguing ground number two, Ms. Kabu submitted that it was true exhibits tendered were not read out loudly after they were admitted, she was of the view that after the guilty plea and reading out of facts, no witnesses were called thus under those circumstances it did not prejudice the appellant since he pleaded guilty. She supported her views with the decision of **Paskali Kamara vs Republic** (supra) where the court cited the decision of **Mathias Barua vs. Republic**, Criminal Appeal No 105 of 2015 (unreported) where tendering of the exhibit, be it an object or document was not a legal requirement.

Arguing together grounds number three and four, the learned state attorney submitted that the trial court rightly concluded that all elements

constituting the offence the appellant was charged with were established where the appellant understood and pleaded guilty. She added that the facts read over to the appellant at the trial court constituted the offence the appellant was charged with. In the end, Ms. Kabu stated that an appeal shall not be allowed in the case where the accused pleaded guilty as per section 360(1) of the Criminal Procedure Act (supra).

Having scanned the records, grounds of appeal and submissions in this appeal from the respondent, the issue for determination is whether the appeal is meritorious.

Starting with the first and 3rd grounds as I see they are intertwined, the main complaint deduced from these grounds is whether the plea was unequivocal and whether the appellant understood the charge being read over to him. The appellant claims that his plea was equivocal or ambiguous as he didn't understand the charge sheet thus the trial court erred in holding that the appellant plea was unequivocal plea of guilty

Having perused the records, it shows that after the charge was read over to the appellant, his reply was 'it is true', thereafter the facts constituting the offence was read over and explained to the appellant to which he agreed to such facts showing the plea of guilty. For ease of reference, the following are what transpired at the trial court;

"Date: 14th November, 2019

Coram: E.N.Petro-RM

Pros: Insp. Feo

Accused: Present

RMA: Kiwia

Court: Charge sheet read over and explained to accused person who asked to plea the charge thereto;

Accused: It is true

Court: Plea of guilty entered.

Sgd:E.N.Petro-RM
14th November, 2019

Pros: I pray to read the facts

Court: Proceed..."

FACTS

1. The accused is Deogratius P. Shayo, Chagga of 19 yrs and resident of Lawate.
2. Before this court the accused is charged with one offence of Rape Contrary to S. 130 (1), (2) (b) and S. 131 (1) of Penal code Cap 16.
3. That on 7th November, 2019 at about 11:00hrs the accused was at Lawate area.
4. That on the above said time the accused and victim were living in one house as house boy and house girl of Steven Mseli.
5. That at that said time the accused forcefully undressed one Rose Antony and forcefully had canal knowledge of her (Rose Antony).

6. *While the offence was taking place, there were only the accused and the victim in that house, so the victim did not have any help until the accused was satisfied then the victim called her Grand Mother via mobile phone.*
7. *The victim Grand Mother then notified the Local authority and the accused was arrested.*
8. *The accused was then brought to Sanya Juu police station for interrogation.*
9. *During the interrogation the accused confessed of raping one Rose Antony the victim.*
10. *The accused was then brought to court to answer the charge.*
11. *The prosecution prays that the caution statement and PF 3 be received to form part of the proceedings and not as exhibits.*

Accused: *No objection*

Court: *Prayer Granted.*

Sgd:E.N.Petro-RM

14th November, 2019

That is all.

Accused: *It is true that I forcefully and without her consent had sexual intercourse of the victim one Rose Antony. I by use of force undressed her and penetrated her vagina till I ejaculated.*

Sgd:E.N.Petro-RM
14th November, 2019

*Accused entered plea of guilty and he
is hereby convicted.*

Sgd:E.N.Petro-RM
14th November, 2019"

What I can discern from the extract above, initially the plea itself was clear and certain that it is true, secondly, after the facts constituting offence were read over, the appellant said again it is true and added that he used force to have sexual intercourse with the victim without her consent.

I have keenly considered the facts narrated to him; it is my settled view they constituted the offence charged. Nonetheless, appellant's reply to those facts which shows he proceeded to state how he used force to penetrate the victim without her consent, in my view shows he understood the facts read to him and knew the same constitute the offence of rape, thus, his defense as raised on grounds above is misplaced. In the circumstances, I find the appellant plea at the trial court was unequivocal as the appellant pleaded guilty to the charge by replying it was true, further admitting to the facts constituting an offence. In the premises these two grounds lack merits.

With regard to the second ground that the documents/exhibits admitted PF3 and a caution statement were not read over and explained to the appellant after being admitted, I am of the view that the same did not prejudice the appellant as correctly submitted by Ms. Kabu. Since the appellant pleaded guilty to the charge and admitted the facts constituting

the offence, I am of the view that even if they were not read over, the same didn't prejudice him. I am constrained to agree with Ms. Kabu when applied the principle of the case of **Paskali Kamara vs Republic** (supra) which I should follow that, since after a guilty plea and reading of facts no witnesses are required; the prosecutor may tender exhibits at that stage. There is no legal requirement that the contents of admitted documentary exhibits must be read aloud after a guilty plea, and failure to do so does not invalidate the plea. For the foregoing also this ground fails miserably.

With regard to the fourth ground, this also won't detain me much as the appeal against plea of guilty is only on a sentence meted. Thus, having considered this ground presented by the appellant, since it is settled that ignorance of law is not a defence for anyone's failure to do something or do something not allowed by law, in the circumstances, even the appellant as a lay person is affected by this principle because all persons are equal before the law including the appellant. In the premises, his defence that he did not know the consequences of pleading guilty and police lied to him on sentence to be awarded becomes obsolete. Hence, this ground also fails forthwith.

Consequently, having considered the facts above, I find the appellant was legally convicted on his own plea of guilty, also the sentence meted out by the trial court was justified. In the final analysis, I find this appeal to have no merits and I proceed to dismiss it in its entirety.

Order accordingly.

DATED at **MOSHI** this 31th day of December, 2025.



X 

JUDGE
Signed by: A. P. KILIMI

Court: -Judgment delivered today on 31st day of December, 2025 in the presence of the appellant in person while respondent representative absent.

Sgd; **A. P. KILIMI**
JUDGE
31/12/2025

Court: - Right of Appeal explained.

Sgd; **A. P. KILIMI**
JUDGE
31/12/2025